

24STCV26202 24STCV26202

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-30

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Case Number: 24STCV26202 Hearing Date: July 30, 2026 Dept: 512

HEARING DATE: Thurs.,

July 30, 2026 JUDGE/DEPT: Mkrtchyan/512

CASE NAME: Sandoval,

et al. v. Valenzuela, COMP. FILED: 10-09-24

et al.

CASE

NUMBER: 24STCV26202

NOTICE: OK

PROCEEDINGS: PETITIONS

FOR APPROVAL OF COMPROMISE OF CLAIM OR ACTION OR DISPOSITION OF PROCEEDS OF
JUDGMENT FOR MINOR

MOVING PARTY: Petitioner

Luz Sandoval on behalf of minor Claimant Dylan Castaneda and minor Claimant Nick
Castaneda

RESP. PARTY: None

PETITION TO APPROVE COMPROMISE OF A DISPUTED CLAIM

(CCP § 372, CRC, rule 7.950.5.)

TENTATIVE RULING:

The

Petitions for Approval of Compromise of Claim or Action or Disposition of

Proceeds of Judgment for Minor filed on behalf of minor Claimants Dylan Castaneda and Nick Castaneda are GRANTED.

The following persons are still required to attend the hearing on the compromise of the claim:

1. Person compromising the claim on behalf of the minor or disabled person (CRC Rule 7.952(a))

2. The minor (id.)

The Court schedules an Order to Show Cause Re: Proof of Deposit of Funds in Blocked Account and Order to Show Cause Re: Dismissal of the Action for August 28, 2026 at 8:30 a.m.

Moving party is to give notice of ruling.

OPPOSITION: None filed as of July 27, 2026 [] Late [X] None

REPLY: None filed as of July 27, 2026 [] Late [X] None

ANALYSIS:

I.

Background

On

October 9, 2024, Plaintiffs Luz Sandoval, Fredy Castaneda, Fredy Castaneda, Jr., and Brandan Castaneda ("Plaintiffs"), and Minor Plaintiffs Nick Castaneda, by and through Luz Sandoval, and Dylan Castaneda, by and through Luz Sandoval, ("Minor Plaintiffs") brought the instant action against Defendants Lisa Marie Valenzuela and Does 1-100, alleging causes of action for Breach of Contract, Breach of Implied Warranty of Habitability, Intentional Infliction of Emotional Distress, Negligence, Nuisance, Wrongful Eviction, and Violation of Civil Code section 1942.4. (Compl., p. 1.)

On

October 14, 2024, Petitioner Luz Sandoval ("Petitioner")'s application to appoint Petitioner as Dylan Castaneda's guardian ad litem was granted. (10/14/24 Order.)

On

January 14, 2025, Petitioner's application to appoint Petitioner as Nick Castaneda's guardian ad litem was granted. (1/14/25 Order.)

On

May 27, 2025, Defendant filed an Answer.

On

April 10, 2026, Plaintiffs filed a Notice of Settlement of Entire Case.

On

May 28, 2026, Petitioner filed the instant Petitions for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor (the "Petitions") on behalf of minor Plaintiffs. Petitioner also filed Proposed Orders and Proposed Orders to Deposit Funds in Blocked Account.

On

July 1, 2026, the Court continued the hearing on the Petitions due to various deficiencies. (7/1/26 Order.)

On

July 7, 2026, Plaintiffs filed and served Notice of Ruling. That same day, Plaintiffs filed and served Amended Petitions and accompanying amended Proposed Orders and Proposed Orders to Deposit Funds in Blocked Account (the "Amended Petitions").

No

Opposition to the Petitions has been filed.

II.

Legal

Standard & Discussion

Court approval is required for all settlements of a minor's

claim. (Prob. Code §§ 3500, 3600, et seq.;

Code of Civ. Proc., § 372.) “ [W]ithout trial court approval of the proposed compromise of the ward's claim, the settlement cannot be valid. [Citation.] [¶] Nor is the settlement binding [on the minor] until it is endorsed by the trial court.’ ” (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1338.) A minor, like Claimant, “shall appear either by a guardian or conservator of the estate or by a guardian ad litem appointed by the court in which the action or proceeding is pending, or by a judge thereof, in each case.” (Code Civ. Proc., § 372, subd. (a)(1).)

To obtain court approval of the settlement of a minor's claims, the petitioner must file a “verified petition for approval of the settlement and must disclose ‘all information that has any bearing upon the reasonableness of the compromise.’ ” (Barnes v. Western Heritage Ins. Co. (2013) 217 Cal.App.4th 249, 256, fn. 4, citing Cal. Rules of Court, rule 7.950.)

A.

Petition
of Dylan Castaneda

Petition

The Court previously noted the following deficiencies in the Petition:

There is no proof of service filed demonstrating the
Petition, Notice of Hearing, and Proposed Orders were served on Respondent.

As to the Proposed Order to Deposit Funds in Blocked Account form, ¶ 3
does not list Petitioner as “parent” in addition to “guardian.”

The Court is satisfied that the deficiencies have been addressed at this
time.

B.

Petition
of Nick Castaneda

Petition

The Court previously noted the following deficiencies in the Petition:

There is no proof of service filed demonstrating the
Petition, Notice of Hearing, and Proposed Orders were served on Respondent.

Attachment 8 is unreadable.

As to the Proposed Order to Deposit Funds in Blocked Account form, ¶ 3
does not list Petitioner as “parent” in addition to “guardian.”

The Amended Petition is accompanied by a proof of service.

Accordingly,
the Amended Petition is GRANTED.

III.

Conclusion
& Order

For
the reasons stated above, The Petitions for Approval of Compromise of Claim or
Action or Disposition of Proceeds of Judgment for Minor filed on behalf of
minor Claimants Dylan
Castaneda and Nick Castaneda are GRANTED.

The
following persons are still required to attend the hearing on the compromise of
the claim:

1. Person compromising the claim on behalf
of the minor or disabled person (CRC Rule 7.952(a))

2. The minor (id.)

The
Court schedules an Order to Show Cause Re: Proof of Deposit of Funds in Blocked
Account and Order to Show Cause Re: Dismissal of the Action for August 28, 2026
at 8:30 a.m.

Moving
parties are ordered to give notice.